

HOUSE No. 1802

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing squatter's rights.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>2/20/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/21/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/28/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/29/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/11/2025</i>

HOUSE No. 1802

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1802) of Bradley H. Jones, Jr., and others relative to squatter's rights. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing squatter's rights.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 120 of chapter 266 of the General Laws, as appearing in the 2022
2 official edition, is hereby amended by striking out the second paragraph and inserting in place
3 thereof the following:-

4 This section shall not apply to tenants or occupants of residential premises who, having
5 rightfully entered said premises at the commencement of the tenancy or occupancy, continue to
6 legally reside at the property per a lease or written agreement. The owner or landlord of said
7 premises may request from the sheriff of the county in which the property is located the
8 immediate removal of a person or persons occupying the property, provided that:

9 The property was not open to members of the public at the time the occupant or
10 occupants entered;

11 The property owner or landlord has directed the occupant or occupants to vacate or leave
12 the property; and

13 The occupant or occupants have not signed a lease or written agreement entitling them to
14 reside at the property, have remained on the property after their lease or written agreement has
15 expired, or have knowingly and willingly failed to adhere to the terms of the lease or written
16 agreement.

17 The property owner or landlord may petition the sheriff's office of the county in which
18 the property is located by presenting a completed and verified complaint to remove persons
19 unlawfully occupying residential real property, which shall verify that the above conditions are
20 met. The owner or landlord may submit this form in writing or complete it online.